

**IN THE COURT OF COMMON PLEAS
KNOX COUNTY, OHIO**

State of Ohio, ex rel. Dave Yost,
Attorney General,

Plaintiff,

Case No. 20IN006-149

v.

JUDGE JAMES KIMBLER

The Landings Property Association, Inc., *et al.*,

Defendants.

Mullins Bros., Ltd.,

Defendant/
Third-Party Plaintiff,

v.

Carol A. Didinger, Trustee, *et al.*,

Third-Party Defendants.

**LONG DEFENDANTS' REQUESTS FOR ADMISSION TO
DEFENDANT/THIRD-PARTY PLAINTIFF MULLINS BROS., LTD.**

The Long Defendants¹ hereby request, pursuant to Rule 36 of the Ohio Rules of Civil Procedure, that defendant/third-party plaintiff Mullins Bros., Ltd. ("Mullins"), admit that the following matters and statements are true. The Long Defendants request that the admissions be

¹ Angela J. Arumpanayil, Trustee; Al A. Balaa; Deborah Banda, Enon Banda; Cary S. Beck; Erika D. Beck; Andrea Belcher; Kenneth Belcher; Anita Bird, Trustee; Robert Boyd; Janet Boyd; Eric Lee Brown; Revecca M. Buckwalter; Aaron Burak; Allison Burak; Edwin L. Cable; Sandra M. Cable; Chu-Hsiang Chen; Yong-Hwa Chen; Karen L. Cherup; Matthew A. Cherup; Joseph R. Christopher; Cheryl K. Christopher; Christopher A. Clark; Kelly L. Clark; Marcell Codispoti; Peggy Codispoti; Paula C. Compton-Solie; Edward L. Cosby; Janice Cosby, Trustees; Derk D. Demaree; Anita M. Demaree; Joseph M. Depolo; Robin L. Depolo; Carol A. Didinger, Trustee; Mark Driftmyer, Trustee; Linda L. Fritz; Marilou M. Fritz; Peggy A. Gaddis; Donald L. Garvic; Andreas Giakoumas; Ypatia Giakoumas; James Goodrich; Diane Goodrich; Carolyn Gray; Gary Gray; Adrienne D. Harris; Jeffry D. Harris; Bharon Hoag; Heather Hoag; Shane Alan Kinton, Trustee; Laurie Ann Kirkpatrick, Trustee; Jennifer Lebold; Robert S. Lebold; Richard Littleton; Vicki Littleton; Mark A. Long; Denise A. Long; Jesse L. Marlow; Jane C. Marlow; Hewlet McFarlane; Angela N. Merryman; Scott T. Miglin; Susan D. Miglin; Mount Vernon Nazarene University; Stephen D. Mullendore; Jeanne C. Mullendore, Trustees; Chetan I. Patel; Chetna C. Patel; Douglas P. Peterson; Diana L. Peterson; Philip B. Petrie; Priscilla J. Petrie; Randolph B. Plasse; Tina M. Plasse; Bradley Porter; Tonya Porter; Brian Przeracki; Kenneth Rhoades; Mary Marjory Rhoades; Ralph Shafer; Mary Margaret Snow; Matthew Snow; Megan Snow; Phil Stopher; Ellen Stopher; Jeffrey Strickland; Rachel Strickland; Nancy Stull; Rodger Stull; Mark S. Tuel; Michael Ulrey; Rosemary Ulrey; Lawrence Vail; Nancy Vail; Alexander Varughese; Marcia J. Varughese; Brad Whitaker; Leslie Whitaker; Andrea White; Dianne L. Williams; Margaret B. Williams; and Timothy J. Williams

made within twenty-eight (28) days after service upon Mullins's counsel, or such shorter time as may be agreed upon between the parties or by order of the court.

According to the requirements of Rule 36 of the Ohio Rules of Civil Procedure, the written answers or objections to each request must be signed by Mullins, or its counsel. If objection is made, the reasons therefore must be stated. If the answer is anything other than an unqualified admission the answer shall specifically deny the matter or set forth in detail the reasons why Mullins cannot truthfully admit or deny the matter. Any denials must fairly meet the substance of the request for admission, and when good faith requires Mullins to qualify its answers, or deny only part of the matter of which an admission is requested, Mullins shall specify so much of it as is true and qualify or deny the remainder. Mullins may not give lack of information or knowledge as a reason for failure to admit or deny unless Mullins states that it has made reasonable inquiry and that the information known or readily obtainable by Mullins is insufficient to enable it to admit or deny. Mullins may not object to any request solely upon the ground that the matter upon which an admission has been requested presents a genuine issue for trial.

According to Rule 37 of the Ohio Rules of Civil Procedure, if a party, after being served with a request for admissions, fails to admit the genuineness of any document or the truth of the matter, the party so failing to admit may be required to bear the reasonable expenses incurred in making the proof, including reasonable attorney's fees.

DEFINITIONS

1. "Dam" or "The Dam" refers to the Knox Cattle Company Dam located on a tributary to Center Run in Knox County, Monroe Township, Ohio.
2. "Lake" or "The Lake" is the reservoir created by the Dam.
3. "The Phase VII Declaration" means the Declaration of Building and Development Restrictions for the Landing Development Phase VII, Revised filed with the Knox County

Recorder on March 22, 2005, at File Number 2005-00002853, Book No. 935, Page No. 640.

4. “The Phase VIII Declaration” means the Declaration of Building and Development Restrictions for the Landing Development Phase VIII filed with the Knox County Recorder on March 13, 2007, File Number 2007-00002401, Book No. 1069, Page No. 118.

5. “The Phase VII Development” means the land in The Landing Development, Phase VII, as described in the Phase VII Declaration and recorded in Plat Cabinet C, Page 24, of the Knox County, Ohio, Plat Records.

6. “The Phase VIII Development” means the land in The Landing Development, Phase VIII, as described in the Phase VIII Declaration and recorded in Plat Cabinet C, Page 60, of the Knox County, Ohio, Plat Records.

7. “This matter,” “this litigation,” “this action,” or “this case” mean case action number 20IN06-149, captioned State of Ohio ex rel. Dave Yost, Ohio Attorney General v. The Landings Property Owners Association, Inc., et al., presently pending before the Knox County Common Pleas Court of Ohio.

8. “Mullins Bros.” means Mullins Bros., Ltd.

9. “Cross-Claim” means the Cross-Claim asserted by Mullins Bros., Ltd. in this litigation against The Landings Phase VII Property Owners, and The Landings Phase VIII Property Owners.

10. The “Landings Phase VII Property Owners” means those individuals who own lots in The Landing Development, Phase VII, and who are listed in Exhibit 1 to the Third Amended Complaint filed in this litigation.

11. The “Landings Phase VIII Property Owners” means those individuals who own lots in The Landing Development, Phase VIII, and who are listed in Exhibit 1 to the Third Amended Complaint filed in this litigation.

12. The “Landings Defendants” means The Landings Phase VII Property Owners, and The Landings Phase VIII Property Owners, collectively.

13. The “Long Defendants” means those Landings Defendants who are identified in footnote 1 of this Request.

14. “Common properties” means the properties referred to in the Third Section of the Initial Articles of Incorporation for The Landings Property Owners Association, Inc., effective date April 1, 2005, under “Purpose for which corporation is formed”, where it states, “To hold, maintain and control the common properties of The Landings Phase VII and VIII.”

The Long Defendants request admission of the following matters and statements:

REQUEST FOR ADMISSION NO. 1.

There was no document attached as Exhibit A to the Declaration of Building and Development Restrictions for the Landing Development Phase VII, Revised when it was recorded at the Knox County Recorder on March 22, 2005.

ANSWER:

REQUEST FOR ADMISSION NO. 2.

There was no Initial Articles of Incorporation attached as Exhibit A to the Declaration of Building and Development Restrictions for the Landing Development Phase VII, Revised when it was recorded at the Knox County Recorder on March 22, 2005.

ANSWER:

REQUEST FOR ADMISSION NO. 3.

There are no “common properties” located in The Phase VII Development.

ANSWER:

REQUEST FOR ADMISSION NO. 4.

There are no “common properties” located in The Phase VIII Development.

ANSWER:

REQUEST FOR ADMISSION NO. 5.

The parcel of land on which the Lake and Dam are located is not part of The Phase VII Development.

ANSWER:

REQUEST FOR ADMISSION NO. 6.

The parcel of land on which the Lake and Dam are located is not part of The Phase VIII Development.

ANSWER:

REQUEST FOR ADMISSION NO. 7.

Mullins Bros., or Steve Mullins, never sent any communication of any kind to any lot owner in either The Phase VII Development or The Phase VIII Development.

ANSWER:

REQUEST FOR ADMISSION NO. 8.

Mullins Bros., or Steve Mullins, never sent any communication of any kind to any lot owner in either The Phase VII Development or The Phase VIII Development regarding The Landings Property Owners Association, Inc.

ANSWER:

REQUEST FOR ADMISSION NO. 9.

Mullins Bros., or Steve Mullins, never sent any communication of any kind to any lot owner in either The Phase VII Development or The Phase VIII Development regarding the Landings Common Area Association, Inc.

ANSWER:

REQUEST FOR ADMISSION NO. 10.

Mullins Bros., or Steve Mullins, never took any action to require the owners of all lots in either The Phase VII Development or The Phase VIII Development to become members of a non-profit corporation known as the Landings Common Area Association, Inc.

ANSWER:

REQUEST FOR ADMISSION NO. 11.

Mullins Bros., or Steve Mullins, never took any action to require the owners of all lots either The Phase VII Development or The Phase VIII Development to become members of a non-profit corporation known as The Landings Property Owners Association, Inc.

ANSWER:

REQUEST FOR ADMISSION NO. 12.

Mullins Bros., or Steve Mullins, never created any entity known as the Landings Common Area Association, Inc.

ANSWER:

REQUEST FOR ADMISSION NO. 13.

No one has ever created an entity known as the Landings Common Area Association, Inc.

ANSWER:

REQUEST FOR ADMISSION NO. 14.

Mullins Bros. is not aware of any evidence that any of the Long Defendants have ever been members of any entity known as the Landings Common Area Association, Inc.

ANSWER:

REQUEST FOR ADMISSION NO. 15.

Mullins Bros. is not aware of any evidence that any of the Long Defendants have ever been members of any entity known as The Landings Property Owners Association, Inc.

ANSWER:

REQUEST FOR ADMISSION NO. 16.

Mullins Bros. is not aware of any evidence that any of the Long Defendants have ever been trustees of any entity known as the Landings Common Area Association, Inc.

ANSWER:

REQUEST FOR ADMISSION NO. 17.

None of the Long Defendants have ever been officers of any entity known as the Landings Common Area Association, Inc.

ANSWER:

REQUEST FOR ADMISSION NO. 18.

Mullins Bros. is not aware of any evidence that any of the Long Defendants have ever been directors of any entity known as the Landings Common Area Association, Inc.

ANSWER:

REQUEST FOR ADMISSION NO. 19.

Mullins Bros. is not aware of any evidence that any of the Long Defendants have ever paid any money to any entity known as the Landings Common Area Association, Inc.

ANSWER:

REQUEST FOR ADMISSION NO. 20.

Mullins Bros. is not aware of any evidence that any of the Long Defendants have ever been trustees of any entity known as The Landings Property Owners Association, Inc.

ANSWER:

REQUEST FOR ADMISSION NO. 21.

Mullins Bros. is not aware of any evidence that any of the Long Defendants have ever been officers of any entity known The Landings Property Owners Association, Inc.

ANSWER:

REQUEST FOR ADMISSION NO. 22.

Mullins Bros. is not aware of any evidence that any of the Long Defendants have ever been directors of any entity known as The Landings Property Owners Association, Inc.

ANSWER:

REQUEST FOR ADMISSION NO. 23.

Mullins Bros. is not aware of any evidence that any of the Long Defendants have ever paid any money to any entity known The Landings Property Owners Association, Inc.

ANSWER:

REQUEST FOR ADMISSION NO. 24.

Mullins Bros. is not aware of any evidence that any of the Long Defendants have any right of access to the Dam.

ANSWER:

REQUEST FOR ADMISSION NO. 25.

Mullins Bros. is not aware of any evidence that any of the Long Defendants have any access to the Lake.

ANSWER:

REQUEST FOR ADMISSION NO. 26.

R.C. 1521.062 (K) provides, “The owner of a dam or levee shall notify the chief in writing of a change in ownership of the dam or levee prior to the exchange of the property.”

ANSWER:

REQUEST FOR ADMISSION NO. 27.

Mullins Bros., Ltd. did not notify the chief of the Ohio Department of Natural Resources of a change in ownership of the Dam prior to the exchange of the Dam to The Landings Property Owners Association, Inc. on or about July 31, 2007.

ANSWER:

REQUEST FOR ADMISSION NO. 28.

Mullins Bros., Steve Mullins, or anyone on his behalf, never filed a corporate tax return for The Landings Property Owners Association, Inc.

ANSWER:

REQUEST FOR ADMISSION NO. 29.

Mullins Bros., Steve Mullins, or anyone on his behalf, never filed an annual report with the Ohio Department of Taxation for The Landings Property Owners Association, Inc.

ANSWER:

REQUEST FOR ADMISSION NO. 30.

Mullins Bros., Steve Mullins, or anyone on his behalf, never set up a bank account for The Landings Property Owners Association, Inc.

ANSWER:

REQUEST FOR ADMISSION NO. 31.

Mullins Bros., Steve Mullins, or anyone on his behalf, never applied for an employer identification number with the Internal Revenue Service for The Landings Property Owners Association, Inc.

ANSWER:

REQUEST FOR ADMISSION NO. 32.

Mullins Bros., Steve Mullins, or anyone on his behalf, never maintained a record of members containing the name and address of each member, the date of admission to membership, and the class to which the member belongs for The Landings Property Owners Association, Inc.

ANSWER:

REQUEST FOR ADMISSION NO. 33.

Mullins Bros., Steve Mullins, or anyone on his behalf, never maintained correct and complete books and records of account, together with minutes of the proceedings of its incorporators, members, directors, and committees of the directors or members for The Landings Property Owners Association, Inc.

ANSWER:

REQUEST FOR ADMISSION NO. 34.

Mullins Bros., Steve Mullins, or anyone on his behalf, never held an annual meeting of voting members for the election of directors and the consideration of reports for The Landings Property Owners Association, Inc.

ANSWER:

REQUEST FOR ADMISSION NO. 35.

Mullins Bros., Steve Mullins, or anyone on his behalf, never took any action to appoint or elect any officers for The Landings Property Owners Association, Inc.

ANSWER:

REQUEST FOR ADMISSION NO. 36.

Mullins Bros., Steve Mullins, or anyone on his behalf, never sent any request to any lot owner in either The Phase VII Development or The Phase VIII Development requesting payment of an assessment to The Landings Property Owners Association, Inc.

ANSWER:

REQUEST FOR ADMISSION NO. 37.

Mullins Bros. is not aware of any evidence that any lot owner in either The Phase VII Development or The Phase VIII Development had any awareness of an entity known as The Landings Property Owners Association, Inc. before 2013.

ANSWER:

REQUEST FOR ADMISSION NO. 38.

Mullins Bros. acquired the property where the Dam is located on March 15, 2005, via Warranty Deed from Knox Cattle Company. This is reflected in the Knox County Recorder's office records at Book No. 934, Pages 587-591. Parcel 4 of the Deed (Knox County Tax Parcel No. 66-09675.162) describes the land where the Dam is located.

ANSWER:

REQUEST FOR ADMISSION NO. 39.

On or about July 31, 2007, Mullins Bros. transferred its ownership of the Dam (Knox County Tax Parcel No. 66-09675.162) to The Landings Property Owners Association, Inc., via Quit Claim Deed, which was recorded with the Knox County Recorder's office on or about August 1, 2007, file no. 2007-00007572, Book No. 1091, Page Nos. 367-369. Parcel 1 of the Deed (Knox County Tax Parcel No. 66-09675.162) describes the land where the Dam is located.

ANSWER:

REQUEST FOR ADMISSION NO. 40.

The Knox County Auditor website lists The Landings Property Owners Association, Inc. as the owner of the Dam (Knox County Tax Parcel No. 66 09675.162).

ANSWER:

REQUEST FOR ADMISSION NO. 41.

Mullins Bros. did not transfer any of its ownership of the land where the Dam is located (Knox County Tax Parcel No. 66-09675.162) to any of the Long Defendants, or any of their predecessors in title.

ANSWER:

REQUEST FOR ADMISSION NO. 42.

None of the Long Defendants have ever had any actual ownership interest in The Landings Property Owners Association, Inc.

ANSWER:

REQUEST FOR ADMISSION NO. 43.

The Landings Property Owners Association, Inc. has never issued any shares or any other form of ownership interest in The Landings Property Owners Association, Inc.

ANSWER:

REQUEST FOR ADMISSION NO. 44.

The Landings Property Owners Association, Inc. was terminated for failure to file a statement of continued existence on February 19, 2015.

ANSWER:

REQUEST FOR ADMISSION NO. 45.

The Landings Property Owners Association, Inc. is a non-profit Ohio limited liability company organized under the laws of the State of Ohio, and is a company with a cancelled status with the Ohio Secretary of State.

ANSWER:

REQUEST FOR ADMISSION NO. 46.

Mullins Bros., or Steve Mullins, never filed with the Ohio Secretary of State on the prescribed form a resignation of Steve Mullins as statutory agent for The Landings Property Owners Association, Inc., and did not send a copy of the notice to The Landings Property Owners Association, Inc.

ANSWER:

REQUEST FOR ADMISSION NO. 47.

Steve Mullins, a member of Mullins Bros., received a letter dated October 14, 2009 from David Hanselmann, Chief, Division of Soil and Water Resources, Ohio Department of Natural Resources, with a salutation, "Dear Dam Owners" ("The 2009 Dam Owners Letter").

ANSWER:

REQUEST FOR ADMISSION NO. 48.

After Steve Mullins received The 2009 Dam Owners Letter, neither Mullins Bros., or Steve Mullins, or anyone on his behalf, contacted Jim Huitger or anyone else at the Ohio Department of Natural Resources to say that neither Steve Mullins nor The Landings Property Owners Association owned the Dam.

ANSWER:

REQUEST FOR ADMISSION NO. 49.

After Steve Mullins received The 2009 Dam Owners Letter, neither Mullins Bros., or Steve Mullins, or anyone on his behalf, contacted Jim Huitger or anyone else at the Ohio Department of Natural Resources to say that there were any additional owners of the Dam.

ANSWER:

REQUEST FOR ADMISSION NO. 50.

After Steve Mullins received The 2009 Dam Owners Letter, neither Mullins Bros., or Steve Mullins, or anyone on his behalf, contacted any lot owner in either The Phase VII Development or The Phase VIII Development to inform them of the content of The 2009 Dam Owners Letter.

ANSWER:

REQUEST FOR ADMISSION NO. 51.

After Steve Mullins received The 2009 Dam Owners Letter, neither Mullins Bros., or Steve Mullins, contacted any lot owner in either The Phase VII Development or The Phase VIII Development to inform them that the State of Ohio had changed the classification of the Dam to Class I.

ANSWER:

REQUEST FOR ADMISSION NO. 52.

Mullins Bros. did not take any action to maintain the Lake or the Dam in 2005, 2006, or 2007.

ANSWER:

REQUEST FOR ADMISSION NO. 53.

Mullins Bros. did not pay any property taxes for the land where the Lake and the Dam were located (Knox County Tax Parcel No. 66-09675.162), in 2005, 2006, or 2007.

ANSWER:

REQUEST FOR ADMISSION NO. 54.

Mullins Bros. did not do any investigation of the responsibilities of a dam owner under Ohio law at any time before 2020.

ANSWER:

REQUEST FOR ADMISSION NO. 55.

Mullins Bros. never paid an annual inspection fee to the Ohio Division of Water Resources for the land where the Lake and the Dam were located (Knox County Tax Parcel No. 66-09675.162).

ANSWER:

REQUEST FOR ADMISSION NO. 56.

None of the deeds signed by Mullins Bros. to convey lots in either The Phase VII Development or The Phase VIII Development had a Declaration attached to it when it was recorded with the Knox County Recorder.

ANSWER:

REQUEST FOR ADMISSION NO. 57.

None of the deeds signed by Mullins Bros. to convey lots in either The Phase VII Development or The Phase VIII Development contain any language about the grantee having to pay an annual assessment.

ANSWER:

REQUEST FOR ADMISSION NO. 58.

None of the deeds signed by Mullins Bros. to convey lots in either The Phase VII Development or The Phase VIII Development contain any language about the grantee having any potential liability for maintenance of a lake or dam.

ANSWER:

REQUEST FOR ADMISSION NO. 59.

None of the deeds signed by Mullins Bros. to convey lots in either The Phase VII Development or The Phase VIII Development contain any language about the grantee having to become a member of a non-profit corporation.

ANSWER:

REQUEST FOR ADMISSION NO. 60.

None of the deeds signed by Mullins Bros. to convey lots in either The Phase VII Development or The Phase VIII Development contain any language about the grantee having to pay an annual assessment.

ANSWER:

REQUEST FOR ADMISSION NO. 61.

Mullins Bros. does not have in its possession, custody or control any documents related to, touching upon, mentioning, or in any way reflecting any alleged acknowledgement by any of the Landings Defendants about a homeowners association.

ANSWER:

REQUEST FOR ADMISSION NO. 62.

Mullins Bros. does not have in its possession, custody or control any documents related to, touching upon, mentioning, or in any way reflecting any alleged acknowledgement by any of the Landings Defendants about a requirement to pay \$200 a year.

ANSWER:

REQUEST FOR ADMISSION NO. 63.

Mullins Bros. does not have in its possession, custody or control any documents related to, touching upon, mentioning, or in any way reflecting any alleged acknowledgement by any of the Landings Defendants about the Landings Common Area Association, Inc.

ANSWER:

REQUEST FOR ADMISSION NO. 64.

Mullins Bros. does not have in its possession, custody or control any documents related to, touching upon, mentioning, or in any way reflecting any alleged acknowledgement by any of the Landings Defendants that the Landings Common Area Association, Inc. shall have the sole and exclusive control of the lake located on the land of the Developer and shall be responsible for its care and maintenance.

ANSWER:

Respectfully submitted,

/s/ Stephen E. Chappellear

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CERTIFICATE OF SERVICE

I hereby certify that a true and accurate copy of the foregoing was served upon the following via electronic or regular mail this 12th day of October, 2023.

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Chad Taylor - submakersinc@gmail.com

/s/ Stephen E. Chappelear
Stephen E. Chappelear (0012205)

VERIFICATION

STATE OF OHIO,

COUNTY OF _____, SS:

I, _____, being first duly sworn, state that the answers to the *Long Defendants' Request for Admissions to Defendant/Third-Party Plaintiff Mullins Bros., Ltd.* are true to the best of my knowledge, or believe them to be true based upon information made available to me.

MULLINS BROS., LTD.

By: _____

Its: _____

SWORN to and subscribed before me this _____ day of _____, 2023.

NOTARY PUBLIC